

2015 WL 5818604 (N.Y.Sup.) (Trial Pleading)
Supreme Court of New York.
Kings County

Edwin JEROME, Plaintiff,

v.

THE CITY OF NEW YORK, PO **Christopher McKenna** Sh. No. 31940, Defendants.

No. 0011776-2015.
September 24, 2015.

Plaintiff designate Kings County as the place of trial.

The basis of venue is the County in which the cause of action arose.

Summons

Miller & Miller, Esqs., Edwin Jerome, 26 Court Street, Suite 2511, Brooklyn, New York 11242, (718) 522-0023, for plaintiff.

To the above named Defendants:

YOU ARE HEREBY SUMMONED to answer the complaint in the above action and to serve a copy of your answer on the Plaintiffs attorneys within 20 days after the service of this summons, exclusive of the day of service of this summons, or within 30 days after service of this summons is complete if this summons is not personally delivered to you within the State of New York.

In case of your failure to answer this summons, a judgment by default will be taken against you for the relief demanded in the complaint, together with the costs of their action.

Dated: Brooklyn, New York September 22, 2015

Plaintiff, by his attorneys, LAW OFFICES OF MILLER & MILLER, as and for his Verified Complaint, respectfully alleges, upon information and belief:

AS AND FOR A FIRST CAUSE OF ACTION (FALSE ARREST & IMPRISONMENT)

1. The Plaintiff, EDWIN JEROME, at all times herein mentioned was and still is a resident of the Kings County, State of New York.
2. At all times herein mentioned, defendant THE CITY OF NEW YORK (hereinafter the "CITY"), was and still is a municipal corporation, created, organized and existing under and by virtue of the laws of the State of New York.
3. That at all times mentioned herein, defendant CITY operated, maintained, managed, and controlled the Police Department of the City of New York.
4. That the Police Department of the City of New York is an agency, instrumentality, department of defendant CITY, and/or defendant CITY derived benefit from the activities of the Police Department of the City of New York.

5. The defendant, PO **CHRISTOPHER MCKENNA**, Sh. 32940, (hereinafter “MCKENNA”) at all times herein mentioned was employed by the Police Department of the City of New York as a police officer.
6. That at all times mentioned herein, defendant MCKENNA was acting within the scope of his employment as a police officer employed by the Police Department of the City of New York.
7. That at all times mentioned herein, defendant MCKENNA was acting under color of law and authority as a police officer employed by the Police Department of the City of New York.
8. That the District Attorney (“DA”) is a policymaker of and for the CITY regarding the management, supervision, and training of Assistant District Attorneys in the Office of the District Attorney for the County of Kings, State of New York and of Police officers that assist in the investigation and prosecution of matters referred to the DA's office.
9. That the DA and/or the CITY effectively promulgated policy, practices and/or customs, amounting to the deliberate indifference to, and impacting upon, the Plaintiff's civil rights, including but not limited to, those guaranteed by the Federal and State Constitutions, within the County of Kings.
10. That said policy, practices, and/or customs, include stopping, frisking and detaining individuals, especially those of the Plaintiffs ethnic background, without probable cause, the use of excessive and unreasonable force, the fabrication of criminal complaints, the arrest and detention of individuals known to have not committed any criminal wrong doing, and a failure to properly instruct, train and/or supervise employees, including defendant MCKENNA, and others involved in the investigation and prosecution of Plaintiff in the underlying criminal action that is the subject hereof.
11. That the DA, and the CITY, perpetuated, or failed to take steps to terminate, said policy, practices and/or customs, did not discipline or otherwise properly supervise the individual prosecutorial personnel who were allowed to and did engage in them, did not effectively instruct, train and/or supervise such personnel, including individual police officers, with regard to the proper constitutional and statutory requirements in the exercise of their authority, but instead sanctioned the offending policies, practices and/or customs with a deliberate indifference to their effect on the individual constitutional rights of the Plaintiff and persons similarly situated.
12. Prior to the commencement of this action, a notice of claim in writing was served on behalf of Plaintiff upon THE CITY OF NEW YORK in accordance with [Section 50-e of the General Municipal Law](#).
13. Within ninety days (90) of the occurrence herein, a notice of claim in writing was served on behalf of Plaintiff, upon THE CITY OF NEW YORK in accordance with [Section 50-e of the General Municipal Law](#).
14. Prior to the commencement of this action, notice of the intention of Plaintiff to commence an action, unless the claim presented was adjusted within the prescribed time as set forth by applicable law to adjust such claims, was served on behalf of Plaintiff upon THE CITY OF NEW YORK.
15. Although more than thirty (30) days have elapsed since service of such notice of claim, THE CITY OF NEW YORK neglected and has refused to pay said claim or adjust same.
16. That the Plaintiff has fully complied with defendants demand for examination or that said demand has been otherwise waived.
17. That this action is being commenced within one year and ninety days after the happening of the event upon which the claim is based.

18. On or about July 2, 2014, in the County of Kings, New York, the Plaintiff was unlawfully detained, arrested, imprisoned and subsequently prosecuted under Docket Number 2014KN050013, by agents, servants and/or employees of defendant CITY, including defendant MCKENNA who at that time was a police officer acting within the scope of his employment.

19. That the aforesaid arrest and imprisonment was malicious, unlawful and not based upon a warrant, probable cause, and/or any other justification, and was therefore a false arrest and imprisonment.

20. That defendant CITY, through its agents, servants and/or employees, including defendant MCKENNA, acted in bad faith and without probable cause in committing the aforesaid arrest and imprisonment of Plaintiff.

21. At the time of his unlawful arrest and imprisonment, Plaintiff had not committed or attempted to commit any illegal act.

22. At the time of Plaintiffs unlawful arrest and imprisonment, the defendants knew or should have known, through the exercise of proper procedure and reasonable investigation, that the aforementioned arrest and imprisonment was false and without probable cause.

23. That the aforesaid arrest and imprisonment was made with knowledge of and/or negligent and/or reckless disregard of the material falseness of the criminal complaint(s).

24. The aforesaid false arrest and imprisonment caused Plaintiff to suffer severe physical injuries, emotional and psychological distress, anguish, anxiety, fear, humiliation, loss of freedom, loss of wages, legal expenses, and damage to his reputation.

25. By reason of the foregoing, the defendants became liable to the Plaintiff in a sum of money which exceeds the jurisdictional limits of all courts of lesser jurisdiction.

AS AND FOR A SECOND CAUSE OF ACTION (MALICIOUS PROSECUTION)

26. Plaintiff repeats and reiterates the allegations contained in paragraphs number above as if fully set forth herein.

27. On or about July 2, 2014, the defendants intentionally, knowingly, recklessly, negligently and with malice caused the commencement of a criminal prosecution against the Plaintiff in the Criminal Court of the City of New York, County of Kings, upon the filing of an accusatory instrument under Docket No. 2014KN050013, without probable cause.

28. In commencing and continuing the said malicious prosecution, defendants caused Plaintiff to be falsely charged with acts in violation of the Penal Law of the State of New York

29. The Plaintiff had not committed or attempted to commit any illegal act(s).

30. The Plaintiff had not given defendant CITY, its agents, servants and/or employees, including defendant MCKENNA, probable cause to believe that she had committed the falsely charged illegal acts.

31. The defendants knew, or should have known through the exercise of reasonable care and proper police procedure, that the said investigation into this matter was flawed and incomplete.

32. The defendant CITY, its agents, servants and/or employees, including defendant MCKENNA wilfully, negligently and wrongfully accused the Plaintiff of having committed acts in violation of the Penal Law of the State of New York.

33. The defendant CITY, its agents, servants and/or employees, including defendant MCKENNA, wilfully, negligently and wrongfully continued to prosecute the Plaintiff for alleged violations of the Penal Law of the State of New York, even though

the defendants knew or should have known of facts and circumstances that would have lead a reasonable person to conclude that the criminal complaint, upon which said criminal prosecution was based, contained material falsehoods and was otherwise improper, and that the continued prosecution of the Plaintiff was, therefore, improper under the circumstances.

34. That on information and belief, the criminal prosecution against the Plaintiff was dismissed on or about March 18, 2015.

35. As a result of the malicious prosecution, the Plaintiff was caused to suffer and continue to suffer severe personal injury, emotional and psychological distress, anguish, anxiety, fear, humiliation, loss of wages, legal expenses and damage to his reputation.

36. By reason of the foregoing, the defendants became liable to the Plaintiff in a sum of money which exceeds the jurisdictional limits of all courts of lesser jurisdiction.

AS AND FOR A THIRD CAUSE OF ACTION (INFLICTION OF EMOTIONAL DISTRESS)

37. Plaintiff repeats and reiterates the allegations contained in paragraphs numbered above as if fully set forth herein.

38. The aforementioned actions of defendants were so outrageous, malicious and shocking that it exceeded all reasonable bounds of decency tolerated by the average member of the community.

39. Defendants acted with the desire and intent to cause Plaintiff emotional distress or acted under circumstances known to them which made it substantially certain that they would cause such emotional distress.

40. Defendants intentionally, knowingly, wilfully, recklessly, negligently and wrongfully caused Plaintiff emotional distress or acted under circumstances known to them which made it substantially certain that they would cause such emotional distress.

41. Defendants acted with utter disregard of the consequences of their actions.

42. As a result, Plaintiff was caused to suffer the infliction of emotional distress.

43. By reason of the foregoing, defendants became liable to Plaintiff in a sum of money which exceeds the jurisdictional limits of all courts of lesser jurisdiction.

AS AND FOR A FOURTH CAUSE OF ACTION (NEGLIGENCE)

44. Plaintiffs repeat and reiterate the allegations contained in paragraphs numbered above as if fully set forth herein.

45. The actions of defendant CITY, through its agents, servants and/or employees, including defendant MCKENNA, heretofore described constitutes negligence in that defendant CITY negligently trained or failed to train its agents, servants, or employees, especially including defendant MCKENNA.

46. The actions of defendant CITY, through its agents, servants, or employees, including defendant MCKENNA heretofore described constitutes negligence in that defendant CITY negligently supervised or failed to supervise its agents, servants, or employees, especially including defendant MCKENNA.

47. The actions of defendant CITY, through its agents, servants, or employees, including defendant MCKENNA heretofore described constitutes negligence in that defendant CITY negligently disciplined or failed to discipline its agents, servants, or employees, especially including defendant MCKENNA.

48. Defendant CITY was negligent in its hiring of its agents, servants and/or employees, especially including defendant MCKENNA who defendant CITY knew, or in the course of adequate and proper investigation should have reasonably known, were unfit to hold their positions.

49. Defendant CITY was negligent in its retention of its agents, servants and/or employees, especially including defendant MCKENNA who defendant CITY knew, or in the course of adequate and proper investigation should have reasonably known, were unfit to hold their positions in that they refused or failed to perform within the statutory and constitutional limits of their authority and misused and abused their positions.

50. That the defendants, their agents, servants, and/or employees were otherwise, and in general, careless, reckless and negligent under the circumstances existing as previously described.

51. All of the causes of action of their complaint are specifically excepted under [C.P.L.R. § 1602](#).

52. As a result of the negligence of defendant CITY and the acts of defendant MCKENNA and other agents, servants and/or employees of defendant CITY, without any negligence on the part of Plaintiff, Plaintiff was caused to suffer severe and permanent personal injuries, pain and suffering, emotional and psychological distress, anguish, anxiety, fear, humiliation, loss of freedom, and loss of wages, legal expenses, and damage to his reputation.

53. By reason of the foregoing, defendants became liable to Plaintiff in a sum of money which exceeds the jurisdictional limits of all courts of lesser jurisdiction.

AS AND FOR A FIFTH CAUSE OF ACTION (ASSAULT/BATTERY/NEGLIGENT CONTACT)

54. The Plaintiff repeats and reiterates the allegations contained in paragraphs numbered above as if fully set forth herein.

55. Defendant MCKENNA's acts, along with those acts of the other police officers who's identities are presently unknown to the Plaintiff who assisted in the arrest of the Plaintiff, caused the Plaintiff to apprehend and/or fear unfriendly contact.

56. A reasonable person in the same circumstances as the Plaintiff, would have apprehended and/or feared unfriendly contact.

57. Defendant MCKENNA and the other police officers who's identities are presently unknown to the Plaintiff who assisted in the arrest of the Plaintiff assaulted the Plaintiff.

58. Defendant MCKENNA was in the employ of the defendants, when Plaintiff was assaulted.

59. The assault, as aforesaid, was within the scope of defendant MCKENNA'S employment.

60. The defendants assaulted the Plaintiff.

61. Defendant MCKENNA's acts, along with those acts of the other police officers who's identities are presently unknown to the Plaintiff who assisted in the arrest of the Plaintiff, were intended to make contact with the Plaintiff.

62. Defendant MCKENNA and the other police officers who's identities are presently unknown to the Plaintiff who assisted in the arrest of the Plaintiff made contact with the Plaintiff.

63. Defendant MCKENNA and the other police officers who's identities are presently unknown to the Plaintiff who assisted in the arrest of the Plaintiff battered Plaintiff.

64. The battery as aforesaid, was within the scope of defendant MCKENNA'S employment.

65. The defendants battered the Plaintiff.

66. At all times herein mentioned, the person of defendant MCKENNA, and that of the other police officers who's identities are presently unknown to the Plaintiff who assisted in the arrest of the Plaintiff, negligently, carelessly and recklessly came into harmful contact with the person of the Plaintiff.

67. That the defendants' assault and battery of the Plaintiff constitutes the use of excessive force in violation of the Plaintiff's civil rights.

68. The Plaintiff was thereby caused to be injured on or about July 2, 2014.

69. The defendants' conduct was willful, wanton, reckless, malicious and/or exhibited a gross indifference to, and a callous disregard for human life, safety and the rights of others, and more particularly, the rights, life and safety of the Plaintiff; and was motivated by consideration of profit, financial advantage, monetary gain, economic aggrandizement and/or cost avoidance, to the virtual exclusion of all other considerations.

70. Due to defendants' actions, Plaintiff is entitled to damages and punitive damages in a sum which exceeds the jurisdictional limit of all lower Courts which would otherwise have jurisdiction.

AS AND FOR A SIXTH CAUSE OF ACTION (VIOLATION OF CIVIL RIGHTS)

71. The Plaintiff repeats and reiterates the allegations contained in paragraphs numbered above as if fully set forth herein.

72. The actions of defendants heretofore described resulting from the July 2, 2014, arrest, detention, imprisonment, assault, use of excessive force, and prosecution of the Plaintiff, constitute an unlawful arrest, imprisonment, assault, use of excessive force, and malicious prosecution which deprived the Plaintiff of rights, privileges, and immunities as guaranteed under the United States Constitution, Amendments One, Four, Five, and Fourteen, the New York State Constitution, the Civil Rights Acts, [42 U.S.C. § § 1981, 1983, 1985, 1986, and 1988](#) and the complained of conduct was either the result of an official policy or unofficial custom, including but not limited to, policies and customs concerning the stopping, frisking and detaining individuals, especially those of the Plaintiff's ethnic background, without probable cause, the use of excessive and unreasonable force, the fabrication of criminal complaints, the arrest and detention of individuals known to have not committed any criminal wrong doing and the hiring, training, supervision, retention and discipline of the defendant CITY's agents, servants and/or employees, and those involving the arrest, detention and prosecution of individuals, including and especially, those persons who are of the Plaintiff's ethnic descent.

73. That the Defendants established a custom policy and/or practice of encouraging, approving and/or tolerating the use by the New York City Police Department ("NYPD") of excessive force and acts of misconduct against civilians, and especially those civilians who are of the Plaintiff's ethnic descent, and subsequent attempts to conceal such actions by failing to adequately train, supervise, and discipline its agents, employees and offices.

74. That the Defendants established a custom policy and/or practice of encouraging, approving and/or tolerating ADA's and members of the New York City Police Department ("NYPD") in their withholding of exculpatory evidence and their countenance of the use by the NYPD of fabricated evidence and criminal complaints and the use of excessive force and acts of misconduct against civilians, and especially those civilians who are of the Plaintiff's ethnic descent, and subsequent attempts to conceal such actions by failing to adequately train, supervise, and discipline its agents, employees and offices.

75. That the Defendants were deliberately indifferent to the use of improper procedures in the detention and arrest of civilians, and especially those civilians who are of the Plaintiffs ethnic descent, and established a custom policy and/or practice of encouraging, approving and/or tolerating the use of said improper procedures by ADAs and the NYPD, including but not limited to the stopping, frisking, detention and arrest of persons without probable cause, the use of excessive force, the fabrication of criminal complaints and evidence, the withholding of exculpatory evidence and subsequent attempts to conceal such actions by failing to adequately train, supervise, and discipline its agents, employees and offices.

76. The defendants have deprived the Plaintiffs of their liberty in violation of their civil and constitutional rights as set forth in the United States Constitution, [42 U.S. C. § 1983](#) and the Constitution of the State of New York.

77. The defendants actions were undertaken under color of law and would not have existed but for said defendants' use of their official power.

78. That the defendants conspired with each other and acted in concert to discriminate against and deprive the Plaintiffs of their Constitutional and Civil rights.

79. The supervisors and policy making officers of defendant CITY and its Police Department, and the Office of the District Attorney, as a matter of policy, are deliberately indifferent to said practices and have failed to take steps to terminate the herein above detailed practices and have failed to discipline or otherwise properly supervise the individuals engaged in such practices.

80. The defendant CITY has failed to properly or effectively train its agents, servants and/or employees, with regard to proper constitutional and statutory limits on the exercise of their authority, and such failure continues to this day.

81. The defendant CITY has sanctioned the policy and practices heretofore described through its deliberate indifference to the effect of such policy and practices upon the constitutional rights of the Plaintiff and others similarly situated.

82. That the defendants' motivations were in contravention of the United States Constitution and the Constitution of the State of New York.

83. By reason of the foregoing, the Plaintiff has been damaged and suffered serious and severe permanent physical injuries, emotional distress and emotional harm as a result of these deprivations of constitutional and civil rights.

84. The defendants' conduct was willful, wanton, reckless, malicious and/or exhibited a gross indifference to, and a callous disregard for human life, safety and the rights of others, and more particularly, the rights, life and safety of the Plaintiff; and was motivated by consideration of profit, financial advantage, monetary gain, economic aggrandizement and/or cost avoidance, to the virtual exclusion of all other considerations.

85. Due to defendants' actions, Plaintiff is entitled to damages and punitive damages in a sum which exceeds the jurisdictional limit of all lower Courts which would otherwise have jurisdiction.

AS AND FOR A SEVENTH CAUSE OF ACTION (ATTORNEYS' FEES)

86. The Plaintiff repeats and reiterates the allegations contained in paragraphs numbered above as if fully set forth herein.

87. The actions of defendants heretofore described resulting from the July 2, 2014, arrest, detention, imprisonment, assault, use of excessive force, and prosecution of the Plaintiff, constitute an unlawful arrest, imprisonment, assault, use of excessive force, and malicious prosecution which deprived the Plaintiffs of rights, privileges, and immunities as guaranteed under the United States Constitution, Amendments One, Four, Five, and Fourteen, the New York State Constitution, the Civil Rights Acts, [42 U.S.C. § § 1981, 1983, 1985, 1986, and 1988](#) and the complained of conduct was either the result of an official policy or

unofficial custom, including but not limited to, policies and customs concerning the stopping, frisking and detaining individuals, especially those of the Plaintiffs ethnic background, without probable cause, the use of excessive and unreasonable force, the fabrication of criminal complaints, the arrest and detention of individuals known to have not committed any criminal wrong doing and the hiring, training, supervision, retention and discipline of the defendant CITY's agents, servants and/or employees, and those involving the arrest, detention and prosecution of individuals, including and especially, those persons who are of the Plaintiff's ethnic descent.

88. That the Plaintiff has incurred significant attorneys' fees in the prosecution of the above referenced claims against the defendants. That in the event that the Plaintiff is successful in the prosecution of the aforesaid claim(s), Plaintiff shall be prevailing parties within the meaning of [42 USC § 1988](#) and entitled to the recovery of said attorneys fees from the defendants.

89. As a result, the defendants became liable to the Plaintiff in a sum of money which exceeds the jurisdictional limits of all courts of lesser jurisdiction.

WHEREFORE, Plaintiff respectfully requests judgment against the defendants in a sum of money which exceeds the jurisdictional limits of all courts of lesser jurisdiction, together with the costs and disbursements of his action.

Dated: Brooklyn, New York September 22, 2015

Yours, etc.

OFFICES OF MILLER & MILLER

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